

Analysis

As described in the opposition declaration, it appears that the parties have “reached a written agreement confirming the date of Plaintiff’s deposition.” Declaration of Tasha-Luna Khatchadourian filed June 16, 2026 (“Khatchadourian Decl.”), ¶16.

While the matter appears moot, Defendant’s reply indicates that it is persisting in this motion because “Plaintiff’s firm has a pattern and practice of avoiding deposition.” This relies on assertions about Plaintiff’s counsel practices in other litigation.

This Court is not going to embark on the exercise of attempting to evaluate the parties’ relative efforts to coordinate depositions in multiple other cases. See Declaration of Kirsten McNelly Bibbes filed April 22, 2026.

What the Court can glean from the description of the efforts in this case is that Defendant’s counsel contributed the stalemate and delay regarding the setting of the deposition.

Although the deposition notices were each time accompanied by a letter requesting “alternative availability,” such requests came with extraordinary short timeframes for the demanded responses. See e.g. Feeley Decl., **Exhibits D and G**. One does not make “every effort” “to resolve any disputes” by unilaterally setting deposition dates and then demanding each time that alternative dates be provided within a scant few days of the “meet and confer” letter. See e.g. Feeley Decl., **Exhibit G** (emailed meet and confer letter dated March 16, 2026 demanding response “by no later than March 18, 2026...”).

Plaintiff’s counsel certainly also contributed to the impasse and delay by relying on repeated objections without themselves engaging in robust efforts to reach out and follow up to find a mutual convenient date for the deposition—at least before whatever last minute discussions led, finally, to the current date being set.

This impasse might well have been solved by simply picking up a phone and conferring on a deposition date. Neither side, it seems, was willing to break the ongoing stalemate by making a truly earnest effort to do so.

Disposition

The Court finds and orders as follows:

1. The Motion to Compel Deposition is DENIED. All requests for sanctions are DENIED.
2. The Court shall issue the order after hearing.

4. 9:00 AM CASE NUMBER: C24-03337
CASE NAME: MARICRUZ DIMAS-MARTINEZ VS. HELIO DIMAS
HEARING ON SUMMARY MOTION
FILED BY: DIMAS-MARTINEZ, MARICRUZ
TENTATIVE RULING:

Before the Court is Plaintiff Maricruz Dimas-Martinez’s Motion for Summary Judgment.

Plaintiff’s MSJ was filed on February 17, 2026, with a hearing date set for June 29, 2026. As such, any opposition as due on or before June 9, 2026. (Code Civ. Proc. § 437c (b)(2).) As of the date of the

drafting of this Tentative Ruling – well after that date – no opposition has been received by the Court.

Factual Background

The Complaint includes a single cause of action for partition. The property at issue is real property located at 2338 Lowell Avenue in Richmond, California (the “Property”). (UMF 3, Deal Decl. ¶ 2.)

Plaintiff and Defendant Helio Dimas are siblings. (UMF 1.) Defendant Susana Dimas is Helio Dimas’ wife. (UMF 2.) On or about July 27, 1994, Plaintiff, Defendant Helio Dimas and their non-party brother Manuel Dimas were transferred title to the Property. (UMF 3.) On November 1, 2024, Manuel Dimas transferred his interest in the Property to Helio. (UMF 4.) On that same date, Helio transferred his interest in the Property to himself and his wife Susana via a grant deed. (UMF 5.)

Shortly thereafter, Helio demanded that Plaintiff transfer her ownership interest in the Property to him. (UMF 6.) Plaintiff requested ‘fair compensation’ for her share, but Helio refused. (*Ibid.*)

At this time, the Property is jointly owned by Plaintiff, Helio, and Susana. (UMF 7.) Neither Helio nor Susana will agree to a voluntary sale of the Property. (UMF 8.) Plaintiff filed her Complaint seeking partition on December 10, 2024, seeking partition by sale as physical division of the Property is impracticable. (UMF 9.) Prior to initiating litigation, Plaintiff’s counsel reached out to Defendants to let them know that she would be moving to have the Property sold if they could not reach some agreement. (UMF 11.) Defendants never responded to this communication. (*Ibid.*)

A notice of lis pendens was filed on December 17, 2025. (UMF 12.)

Standard

Summary judgment is proper if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc. § 437c(c).) A moving defendant satisfies the initial burden of showing that a cause of action has no merit if he shows that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c (p)(2).)

Once the defendant meets that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. (*Ibid.*) The plaintiff then has the burden of demonstrating that triable issues of material fact exist. (*Ibid.*)

Even though the instant MSJ is unopposed, the Court cannot grant summary judgment unless Defendant meets its initial burden. (See *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 305.) The scope of the defendant’s initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal. App. 3d 1, 18.)

Analysis

“A co-owner of property has an absolute right to partition unless barred by a valid waiver.” (*LEG Investments v. Boxler* (2010) 183 Cal.App.4th 484, 493.) “[T]he right of partition may be waived by contact, either express or implied.” (*Ibid.*) The evidence shows that Plaintiff is a co-owner of the Property. There is no evidence that Plaintiff has waived her right to partition. As such, the Court finds

that Plaintiff has a right to partition of the Property.

“If the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property and, unless it is to be later determined, the manner of partition.” (Code Civ. Proc. § 872.720 (a).) The Court must determine the interests of the parties before determining the manner of partition. (*Summers v. Superior Court* (2018) 24 Cal.App.5th 138, 142-43.)

The evidence shows that Plaintiff received a 1/3 interest in the Property via the 1994 Grant Deed. Her brothers Helio and Manuel Dimas also each received 1/3 interests in the Property. Manuel and Helio granted both of their interests to Helio on November 1, 2024. On that same date, Helio then granted his sole interest in the Property to himself and his wife, Susana Dimas, the Defendants in this action.

As a result of the above transfers, the Court finds that Plaintiff currently holds a 1/3 interest in the Property while Defendants Helio Dimas and Susana Dimas hold a 2/3 interest “as community property with right of survivorship.”

Once the Court has determined the interests of the parties and the right to partition, the Court may determine the manner of partition. (*Summers*, supra, 24 Cal.App.5th at 142-43.) The Court “shall order that the property be sold and the proceeds be divided among the parties in accordance with their interests in the property,” when the parties agree to such relief or the “court determines that, under the circumstances, sale and division of the proceeds would be more equitable than division of the property.” (Code Civ. Proc. § 872.820.)

Plaintiff submits that it would be impracticable to do anything other than sell the Property and distribute the proceeds to the parties. Defendants do not argue otherwise. Given the nature of this dispute and the nature of the Property, the Court finds that sale of the Property and division of the proceeds would be the most equitable result.

Conclusion

Based on the above, Plaintiff’s Motion for Summary Judgment seeking partition of the Property is **granted**. The Court finds:

- Plaintiff has a 1/3 interest in the Property and Defendants hold a 2/3 interest “as community property with right of survivorship.”
- Plaintiff has a right to partition of the Property.
- The Property shall be sold and the proceeds distributed among the parties in accordance with their respective interests in the Property.

Given the above, the Court will advance the CMC currently set for September 18, 2026, to **July 9, 2026 at 8:30a.m.** in order to move this matter forward toward the sale of the Property. The parties should be prepared to discuss next steps, including possible appointment of a referee to oversee the sale of the Property, at that CMC. (Code Civ. Proc. § 873.010 et seq.)

MOVING PARTY TO PREPARE THE ORDER AFTER HEARING.

5. 9:00 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
HEARING IN RE: JOINDER TO DEF VITNER HOMEOWNER'S ASSOCIATION, INC. AND ASAP
COLLECTION SERVICES MOTION FOR PROTECTIVE ORDER TO STAY ALL DISCOVERY UNTIL 30 DAYS
AFTER RESOLUTION OF DEMURRER
FILED BY: NEW PIPES INC
TENTATIVE RULING:

Defendants The Vintner Homeowners' Association and A.S.A.P. Collection Service LLC filed a motion for protective order to stay all discovery (the "MPO") on December 5, 2025. The motion was later joined by defendant New Pipes, Inc. (collectively, "Defendants") on December 15, 2025. The motion was set for hearing on June 29, 2026.

Background

The MPO sought to stay all discovery until thirty days after the resolution of the Defendants' previously filed demurrer. See MPO filed December 5, 2025, p. 2. The motion was joined by the additional defendant on December 15, 2025. See Joinder re Motion for Protective Order filed December 15, 2025 ("Joinder"). The proofs of service attached to the MPO and Joinder reflect service on plaintiff Praveen Gupta ("Plaintiff"). See Proof of Service dated December 5, 2025 as part of MPO filed December 5, 2025, pp. 3-4; Proof of Service dated December 15, 2025 as part of Joinder filed December 15, 2025. Plaintiff filed an opposition to the MPO on June 15, 2026 arguing the matter was moot given the filing of the second amended complaint and requesting sanctions. See Notice re Opposition to MPO filed June 15, 2026 ("Opposition to MPO"), pp. 1-2.

On June 22, 2026, Defendants filed a notice to withdraw the MPO and Joinder. See Notice re Withdrawal of MPO filed June 22, 2026 ("Notice re MPO Withdrawal"); Request for Judicial Notice re Reply and Notice of Withdrawal of Joinder filed June 22, 2026 ("Notice re Joinder Withdrawal").

Analysis

The moving party has withdrawn the motion stating that the MPO was premised on the impropriety of discovery given plaintiffs lack of standing which has now been cured. See Declaration of Michael A. Walker re Reply and Notice of Withdrawal filed June 22, 2026 ("Walker Decl."), ¶12-3. As the motion has been withdrawn, the hearing set for June 29, 2026 is hereby VACATED.

Although the moving party has withdrawn the motion, there is a pending request by Plaintiff for sanctions. In light of the foregoing, the Court concludes that sanctions are not appropriate or justified. See Code Civ. Proc. § 2025.480(j) ("The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.").

Disposition

The Court finds and orders as follows:

1. The Motion for Protective Order has been withdrawn.